



POLICE DEPARTMENT CITY OF NEW YORK

January 10, 2017

MEMORANDUM FOR: Police Commissioner

Re: Detective Jose DeJesus
Tax Registry No. 901430
Warrant Section
Disciplinary Case No. 2015-14157

Charges and Specifications:

1. Said Detective Jose DeJesus, on or about February 26, 2015, at approximately 0545 hours, while assigned to the Warrant Section and on duty, in the vicinity of [REDACTED], engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he entered said apartment without sufficient legal authority.
P.G. 203-10, Page 1, Paragraph 5 - PUBLIC CONTACT - PROHIBITED CONDUCT
2. Said Detective Jose DeJesus, on or about February 26, 2015, at approximately 0545 hours, while assigned to the Warrant Section and on duty, in the vicinity of [REDACTED], engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he searched said premises without sufficient legal authority. (*As amended*)
P.G. 203-10, Page 1, Paragraph 5 - PUBLIC CONTACT- PROHIBITED CONDUCT

Appearances:

For CCRB-APU: Jonathan Fogel, Esq.
Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

For Respondent: James Moschella, Esq.
Karasyk & Moschella, LLP
233 Broadway-Suite 2340
New York, NY 10279

Hearing Date:

November 16, 2016

Decision: Not Guilty (both counts)

Trial Commissioner:

ADCT Jeff S. Adler

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on November 16, 2016. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. CCRB called Renee Fishon and Detective Daniel Castillo as witnesses. Respondent called Detective Marcin Drozniak as a witness, and Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, I find Respondent not guilty of the charged misconduct.

FINDINGS AND ANALYSIS

At approximately 0545 hours on February 26, 2015, Respondent, Detective Daniel Castillo, and Detective Marcin Drozniak, all from the Staten Island Warrant Squad, went to [REDACTED]. Respondent and Detective Drozniak were there as back-up for Detective Castillo, who was the lead investigator for this assignment. The detectives were there looking for Person A, for whom there was a recent I-card based on a domestic offense. Additionally, Detective Castillo had with him an active arrest warrant from 2012 for "Person B", listing the same address. "Person B" is Person A's middle name, and the detectives had reason to believe that Person B and Person A might be the same person, though they weren't sure.

Detective Castillo knocked on the door, which woke up the apartment's sole occupant at the time, Renee Fishon. Fishon did not initially open the front door, and instead spoke with the detectives through the closed door and looked through the peephole. The detectives identified

themselves as police, but since they were not in uniform Fishon did not trust that they were, in fact, members of service. Fishon wanted to see someone in uniform before she would open the door, and she called 911 to explain the situation. The operator told her that they were sending a sergeant to the scene. Detective Castillo also made a call requesting that uniformed personnel be sent to the location.

Once a uniformed officer arrived Fishon did open the door, either partially or fully. It is undisputed that the detectives then entered the apartment and looked around inside. At issue is whether Fishon's behavior was reasonably interpreted by Respondent as voluntary consent to enter and search the apartment.

Renee Fishon, age 50, testified that she was awakened by the banging on her door, and heard several voices outside her apartment yelling "Police, Police" and telling her to open the door. When she looked through her peephole she saw a man in a black t-shirt and black hat. Since she didn't see anyone in uniform she was suspicious whether they really were police, and decided to call 911 to be sure. The operator said she would send a sergeant, and that Fishon should not open her door until then. Meanwhile, Detective Castillo (who Fishon mistakenly referred to as "Detective Castiglion" at trial) told her to open the door or he would kick it in. (Tr. 20-22)

About 10-15 minutes later, Fishon, through her peephole, saw a uniformed officer outside her door. Fishon, who years earlier worked as a Police Administrative Aide ("PAA"), saw a stripe on the officer's jacket and believed him to be a sergeant. Upon seeing the uniformed officer, she did open her door, but claimed she only opened it a few inches. Fishon testified that there was a big difference between "opening the door" and "slightly opening the door", and insisted that she only did the latter. She maintained that she was not consenting to the detectives entering and searching her apartment, but only intended to see if the people outside her door

were actual officers. (Tr. 23-25, 53) However, when asked to describe the incident in her CCRB interview of May 7, 2015, Fishon stated that when she saw the uniformed officer, "I opened up my door"; she never stated that she only opened it "slightly." (Tr. 54-55)

According to Fishon, Detective Castillo pushed past her and entered the apartment. He was followed by Detective Drozniak and then Respondent, neither of whom pushed her aside. The uniformed sergeant never entered, and she no longer saw the man in the black shirt and hat. Fishon testified that as he was entering the apartment, Detective Castillo briefly showed her a paper that he identified as a warrant for Person A, and then snatched it away from her. (Tr. 25-26, 35, 43-44, 48) Detective Castillo then went to the balcony door and pulled on the handle, while Respondent and Detective Drozniak went inside her bedroom. Fishon observed Respondent lift and look under her mattress, and he also looked behind her dresser and inside a closet. She did not see Respondent look inside any drawers. Back in the hallway there was another locked closet, which Respondent asked Fishon to unlock. She complied, and Respondent looked inside, but didn't go through any of the boxes that were in there. Fishon agreed that Respondent was respectful and courteous. (Tr. 27-29, 45, 48, 51)

Fishon claimed she never verbally invited the detectives inside her apartment, but acknowledged that she never told them to leave, since she "had nothing to hide." (Tr. 29, 33, 46, 61) She asked and received the name and shield number of Detective Castillo, who first uttered a "smart remark" to her. Detective Castillo then left the apartment, while Respondent and Detective Drozniak remained inside for a few more minutes speaking with her. Detective Drozniak provided his name, and Fishon testified that she already knew Respondent since he and another partner had visited the apartment several times in the past looking for [REDACTED] Person A. On at least one prior occasion, Fishon acknowledged that she "let him and his other

partner come into my apartment to look around so they could see Person A was not there.” (Tr. 30- 31)

According to Fishon, Person A used her apartment as his mailing address and stayed with her when he was having difficulties with his girlfriend, but she claimed she had not seen him for about a year. Fishon added that Person A had just been released from jail in December 2014 after serving an eight-month sentence. She denied knowing Person B, but confirmed that “Person B” was Person A’s middle name. Before the two detectives departed, Fishon gave them Person A’s phone number, and she also left Person A a voice message to call the detectives. All told, the detectives were inside her apartment for a total of approximately 15-20 minutes. (Tr. 18-19, 33, 36, 39, 45, 52)

Detective Castillo, the lead investigator who has been with the Department eight years, testified that he had an I-Card for Person A in connection with a domestic offense. Based primarily on the detective’s conversation with Person A’s girlfriend (the complainant on the I-Card), and various law enforcement database checks, Detective Castillo expected to find Person A at the [REDACTED] apartment. Some of his efforts to locate Person A were documented in his ADW report, which was admitted into evidence (CCRB Ex. 1). Detective Castillo also had an active arrest warrant for “Person B” from 2012 that listed this apartment as his address (Resp. Ex. A). Despite the similarity in names and height, connections to the same address, and identical dates of birth, the detective believed Person A and Person B might be two separate people; he explained that since there wasn’t a photograph connected to the warrant he wasn’t entirely convinced they were the same person and considered it “a little gray.” Detective Castillo’s intention in going to the apartment was to arrest Person B, and to investigate the whereabouts of Person A as well. (Tr. 162, 166, 177, 181)

According to Detective Castillo, even though he showed Fishon his identification and the warrant through the peephole, she refused to open the door because she didn't believe they were police. Fishon insisted on seeing a uniformed officer before she'd open the door, and so the detective made a radio call requesting a uniformed sector to respond to the location. Two uniformed officers arrived and showed themselves through the peephole, but Fishon said she wanted to see a sergeant. Detective Castillo told her that they had been there 40 minutes and needed to get inside to search the apartment, and she opened the door. The detective could not recall whether a sergeant actually arrived. (Tr. 167-169, 185-186, 203-204)

Detective Castillo testified that Fishon opened the door "all the way", and he entered the apartment. The detective denied pushing Fishon aside, or having any physical contact with her. He went to look under the sofa since there were two couches oddly stacked on top of each other, and also checked the balcony for safety reasons. Detective Castillo explained to Fishon that they were only looking in areas where a person might be hiding. The detective described Fishon as apparently angry and upset with his presence, as she stood there with her hands on her hips, though she never asked the detectives to leave. Detective Castillo decided to remove himself from the apartment, while Respondent remained behind to speak with Fishon. After they left, Person A called the detectives, and he was placed under arrest later that day. (Tr. 169-173, 187, 190-193)

Detective Drozniak, who has been with the Department for 11 years, testified that even after the detectives showed Fishon their identification and told her they had a warrant for Person B, she would not open the door until she saw uniformed officers. She and the detectives "came to an understanding that she wanted to see patrol officers in uniform which would make her feel comfortable for her to open that door." According to Detective Drozniak, once the uniformed officers arrived, Fishon "invited us in." Specifically, she swung open the

door all the way, stepped back, and told the detectives, "Hey, guys, you can go in and look. He's not here." The three detectives entered and looked around for the individual to no avail. They also were seeking information regarding Person A, the subject of an I-Card. Detective Drozniak stated that they were inside the apartment for several minutes, and insisted that he never heard Fishon voice any objection to their presence there. (Tr. 135-139, 141, 145)

Respondent, who has been with the Department for 24 years, testified that as they were pulling up at the location, Detective Castillo, the lead investigator, told him he had an active warrant for Person B and an active I-Card for Person A. Respondent did not notice that the warrant was from 2012. Respondent's understanding was that he was there to assist in the arrest of Person B, who they reasonably expected to be there based on the address listed on the warrant and the early morning hour. They also were there to investigate Person A, who Respondent believed might be a separate person. Initially, just the three detectives were outside the apartment; there was no additional male in a black shirt and black hat. Detective Castillo spoke with Fishon through the door, "reassuring her" that they were the police. Fishon did not believe they were officers and would not open the door, so Detective Castillo radioed a request for a uniformed patrol unit to be sent to the location and told Fishon to call 911 as well. (Tr. 72, 82-85, 95, 111, 114, 117)

About five to ten minutes later, uniformed officers arrived, and Detective Castillo asked Fishon to look through the peephole to confirm their presence. Respondent testified that Fishon then fully opened the door "for us to walk in," and Detective Castillo walked inside the apartment, telling her that they had an active warrant for Person B and showing her the warrant. Although initially Respondent could not recall whether Fishon told the detectives to "come in," after he refreshed his recollection with his May 7, 2015 CCRB interview Respondent recalled that she did, in fact, say that to the detectives "once she saw the police uniform present."

Respondent did not see Detective Castillo push Fishon or make any physical contact with her. Detective Drozniak then entered the apartment as well, followed by Respondent. Respondent did not hear any objections from Fishon, and believed they had her consent to enter and search the apartment. (Tr. 86-88, 93, 99, 101, 128)

Once inside, Respondent and Detective Drozniak went to the bedroom searching for the individual who was the subject of the warrant. Respondent looked under the bed and behind the dresser, and asked Fishon to open a hallway closet, which he checked as well to no avail. The entire search lasted about five minutes, and then Respondent spent an additional five minutes speaking with Fishon, trying to persuade her to have Person A call the detectives. Respondent testified that Fishon was polite, and as the detectives were leaving the building, Person A called and arranged to surrender. (Tr. 89-91, 121-122)

It is alleged that Respondent improperly entered and searched the apartment. Guidance for what constitutes reasonable police conduct in this situation can be found in the Fourth Amendment. It is a basic principle of Fourth Amendment law that entry into a home without a warrant is presumptively unreasonable. However, it also is well-settled that police need not procure a warrant when they have obtained the voluntary consent of a party possessing the requisite authority over the premises. See *People v. Adams*, 53 NY2d 1 (1981). The January, 2014 Legal Bureau Bulletin on "Exceptions to the *Payton* Rule" provides that consent is valid where:

- The means by which officers seek consent to enter are not coercive,
- The words or conduct of the person from whom officers seek consent suggest that such consent is given voluntarily, and
- Consent is obtained from someone who has authority to consent to police entry.

The primary issue here is whether Respondent reasonably believed that he had Fishon's voluntary consent to enter her home. There is no dispute that this was Fishon's apartment, and so she did have authority to consent to the detectives' entry. Counsel for CCRB argues, though, that Fishon only opened her door a few inches, and the detectives then pushed their way inside her apartment without her permission. In the alternative, counsel suggests that Detective Castillo's comment to Fishon to open the door because they had to search the apartment, combined with the overall frightening nature of this early-morning incident, constituted coercion. For the reasons discussed below, this tribunal disagrees.

Although she may initially have been startled by the banging on her door, Fishon, through her behavior that morning, demonstrated that her will was not overcome by the police presence, or by Detective Castillo's telling her to open the door because they needed to search the apartment. Rather, she exhibited a level of control over the situation, dictating the circumstances under which she would agree to open her door and admit the detectives. Specifically, Fishon informed the detectives, who were in plainclothes, that she needed to be sure that they were, in fact, police. She would only open the door to them if she first confirmed that they were police through the appearance of a uniformed officer.

Rather than force their way into the apartment, Respondent and his colleagues agreed to accommodate the parameters set by Fishon. They waited while Fishon called 911 to request a uniformed presence. Detective Castillo may have been impatient to enter, but he, too, made a radio request for a uniformed sector to appear and then waited for them. When uniformed officers did arrive, Fishon was able to view them through her peephole. Even if it is unclear whether there was a sergeant present or just patrol officers, Fishon, herself, believed that the uniformed officer she viewed through the peephole was a sergeant.

There is some dispute over what happened after the uniformed officers arrived. Detective Castillo stated that Fishon opened the door fully, which he took as a sign that she was consenting to their entry, even though he didn't hear her tell them to come in. Detective Drozniak testified that not only did Fishon fully open the door, she also stepped back and told the detectives, "You can go in and look. He's not here." Respondent also heard Fishon say "Come in," and confirmed that she fully opened the door. Respondent further testified that Detective Castillo did not forcibly push his way inside. As a witness, Detective Castillo, who was testifying for the first time as a detective about one of his I-card cases, came across as somewhat short in his responses to questioning, and defensive about his role as lead investigator. Respondent, who has been with the Department 24 years, appeared more forthcoming and answered questions willingly. This tribunal found Detective Drozniak, in particular, to be credible in his account of their entry into the apartment. Though counsel for CCRB correctly noted that Detective Drozniak, too, faces charges and specifications in connection with this incident, the detective came across as professional and earnest in his description of how Fishon opened the door and invited them inside to look around.

Fishon, meanwhile, claimed that she opened her door just a few inches, and that Detective Castillo pushed past her into the apartment. Although this tribunal is mindful that Fishon did appear as a witness, and parts of her account of what occurred that morning were plausible, this particular portion of her testimony was questionable. The detectives' act of calling and waiting for a uniformed response in order to allay Fishon's concerns belies her claim that Detective Castillo initially threatened to break her door down. At least one uniformed officer did arrive, satisfying Fishon's condition for opening the door to the detectives. The former PAA's ensuing cooperation with Respondent and Detective Drozniak in contacting Person A is inconsistent with her having been pushed aside; rather, it supports the detectives'

testimony that Fishon was consenting to their presence there, just as she had on previous occasions where Respondent had appeared at her apartment with another partner.

Respondent is the only subject of this trial, and the situation must be assessed from his perspective, as the back-up detective who was the third to enter the apartment. Respondent saw Fishon fully open the door, an observation corroborated by both Detectives Drozniak and Castillo. Respondent also heard Fishon tell the detectives to "come in", and Detective Drozniak provided detailed corroboration of that as well. Once inside, Fishon was polite and cooperative with Respondent, willingly unlocking a closet door for him, and providing assistance in contacting Person A; indeed, Person A actually called the detectives and arranged to surrender later that same day. Under the totality of these circumstances, Respondent reasonably believed that he had Fishon's voluntary consent to enter and search the apartment.

Additionally, this tribunal credits the detectives' accounts that once inside, they only searched in areas they reasonably believed a person could be hiding. These areas included under the bed and inside a closet. Fishon confirmed that she didn't see the detectives look inside any drawers. The detectives quickly determined that other than Fishon, no one else was present, and so they concluded their search. Indeed, the entire search apparently took no more than five minutes.

Counsel for CCRB also argues that Detective Castillo did not do a sufficient investigation to determine that the subject of the warrant would be found at the apartment. He adds that to the extent Respondent relied upon the lead investigator without questioning him further about his information, that reliance was reckless. Counsel for Respondent counters that Detective Castillo had an active warrant and did conduct a thorough investigation, and that it was reasonable for Respondent, as the back-up detective, to rely on Detective Castillo's information. However, in

light of the finding that Respondent reasonably believed he had Fishon's consent to enter and search the apartment, this tribunal need not address the thoroughness of Detective Castillo's investigation.

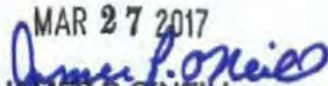
The record has failed to establish by a preponderance of the credible evidence that Respondent entered Fishon's apartment without sufficient legal authority. Similarly, the credible evidence has not established that Respondent improperly searched the premises. Accordingly, I find Respondent not guilty of each of the two specifications.¹

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED

MAR 27 2017

JAMES P. O'NEILL
POLICE COMMISSIONER

¹ In his *Fogel* letter dated Dec. 23, 2016, Counsel for CCRB, for the first time, cites *Bumper v. North Carolina*, 391 U.S. 543 (1968) for the proposition that consent cannot be considered voluntary when it is given in submission to an officer's announcement that he has a warrant. That case involved a suppression issue, where officers told the occupant they had a warrant to search her house, and she relented by letting them right in. Here, however, when asked if the detectives articulated that they had a warrant before she opened her door, Fishon testified, "No, they didn't say that at first." According to Fishon, it was only after she already had opened the door and the detectives were walking inside to search that Detective Castillo showed her the warrant, and even then she didn't believe it was a warrant "because it didn't look like a warrant." (Tr. 35) Based on this record, I find it is more likely than not that Fishon's decision to allow the detectives to enter and search her apartment was not in submission to an announcement of a warrant. As such, the *Bumper* decision is inapplicable to the facts of this case.